

Crl. Misc. No. 11177-B/2015

Mian Sajidon Subhani.

The State etc.

5. 14.10.2015. Mr. Sikandar Zulqarnain Saleem, Advocate for the petitioner.
Mr. Muhammad Ikhlq, Deputy Prosecutor General with Muhammad Nawaz, S.I. with record.
Mr. Arfan Ahmed Khan, Advocate for the complainant.

Through this petition, Mian Sajidon Subhani petitioner has sought post-arrest bail in case F.I.R. No.286 dated 04.6.2014 registered under sections 302, 148, 149, 201 P.P.C. at Police Station Samanabad, Lahore.

2. Briefly, the allegation against the petitioner is that on the day of occurrence i.e. on 04.6.2014 he along with his co-accused while armed with firearms weapons, formed unlawful assembly and in prosecution of the common object of the unlawful assembly committed Qatl-e-Amd of Muhammad Iqbal Meer, brother of the complainant.

3. I have heard the arguments of the learned counsel for the parties and have gone through the record.

4. As per F.I.R, the petitioner caused fire-arm injury on the chest of the deceased-Muhammad Iqbal Meer which was supported by the post mortem report i.e. injury No.2-A and the same was declared fatal. The

learned counsel for the petitioner has contended that the co-accused-Faisal Butt got recorded his judicial confession at the time of framing of charge and pleaded guilty and eye witness, namely, Malik Tariq Javaid has sworn an affidavit and also submitted petition under section 22-A, 22-B Cr.P.C. before the learned Ex. Office Justice of Peace wherein he contended that he was not present at the place of occurrence, which makes case of the petitioner one of further inquiry but the contention of the learned counsel for the petitioner has no force for the reasons that the complainant, who is an eye witness of the occurrence, is yet to be examined. The judicial confession cannot be said to have been corroborated by the extra judicial confession by the same co-accused dated 07.12.2014. There is a very serious infirmity in both confessional statements which destroys the credibility of judicial confession. The ocular account and medical evidence do not lend corroboration regarding the mode and manner of occurrence to the extra judicial confession besides judicial confession. An affidavit and petition under section 22-A, 22-B of Cr.P.C. submitted by the eye witness, namely, Malik Tariq Javaid, the witness seems to have resiled from his statement. From the record produced before this court it reveals that the eye witness, namely, Malik Tariq Javaid and the accused/petitioner along with co-accused, namely, Muhammad Faisal were represented in the court through one learned counsel namely, Mr. Munazzar Ghani Chaudhary, Advocate, therefore, this is a case of

tempering. In successive investigations, the petitioner/accused had been found to be fully involved in the crime and consequently challan in the case had been submitted. *Prima facie*, sufficient material is available on the record to connect the petitioner with the commission of the offence, falling within the prohibitory clause of section 497, Cr.P.C.

5. In these peculiar facts and circumstances of the case, I have not been persuaded to extend the petitioner the relief of bail. The petition in hand, therefore, is hereby **dismissed**. It is however, made clear that any observation made above shall not influence the mind of the learned trial court in any manner.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

Hamid/*